



APPLICATION COVER SHEET

Date: _____

Office # _____

SUBMIT TO	
To: Application Processing	Sales Partner Contact:
E-Mail: applications@merituspayment.com	Sales Partner E-Mail:
Fax Number: 949-315-3216	Sales Partner Phone Number:
MERCHANT INFORMATION	
DBA:	Terminal/Software:
Contact Person:	Contact E-Mail:
Contact Phone Number:	Web Site/Descriptor Information:

- ☐ **RETAIL MERCHANT: Volume <\$500,000/month**
- ☐ Signed completed merchant application and merchant agreement (Must have PG signature).
 - ☐ Most recent month's processing statement (if applicable)
 - ☐ Copy of a voided check or bank letter on bank letterhead (no temporary checks)
- ☐ **CARD NOT PRESENT MERCHANT: Volume <\$99,000/month**
- ☐ 3 most recent months previous processing statements (*if applicable*)
 - ☐ 1 month's recent bank statement (*personal if business is unavailable*)
 - ☐ Copy of voided check (printed) or bank letter on bank letterhead (*no temp checks*)
 - ☐ Sample of marketing piece (*live URL for e-Commerce, login passwords if applicable*)
- ☐ **CARD NOT PRESENT MERCHANT: Volume \$100,000 – \$500,000/month**
- ☐ 1 month most recent banks statements (*personal if business is unavailable*)
 - ☐ 3 months of most recent processing statements
 - ☐ Copy of voided check (printed) or bank letter on bank letterhead (*no temp checks*)
 - ☐ YTD Profit & Loss and Balance Sheet (*personal net worth statement if business is new*)
 - ☐ 1 year of business tax returns (*most current personal tax returns if unavailable*)
- ☐ **CARD NOT PRESENT MERCHANT: Volume \$500,000+ /month**
- Contact Relationship Management at 888.869.0469 or RM@merituspayment.com

Notes/Special Requests:



MERCHANT APPLICATION AND AGREEMENT

Office#: _____ Rep# _____

SIC: _____

1. BUSINESS INFORMATION

☐ Sole Prop.	☐ Partnership	☐ Public Corp.	☐ Private Corp.	☐ Tax Exempt	☐ LLC	State Filed:
Legal Name:			Business Telephone:		Business Fax:	
Business Name (DBA):			Billing Address:			
Location Address:			Billing City, State, ZIP:			
City, State, ZIP:			Business Start Date:		Federal Tax ID:	
Contact Name:			Customer Service Telephone:			
Contact E-Mail:			Web Site Address:			
Card Holder Descriptor (21 Characters: Must Include Phone # if Keved Merchant):			Description of Products/Service:			

2. OWNERS/PARTNERS/OFFICERS

Name:	Title:	Equity/Ownership%:
Date of Birth:	Driver's License No./State:	Social Security Number
Home Address:	City/State/ZIP	Home Telephone:
Name:	Title:	Equity/Ownership%:
Date of Birth:	Driver's License No./State:	Social Security Number
Home Address:	City/State/ZIP	Home Telephone:

3. MERCHANT PROFILE

Do you currently accept Visa/MC/ Discover® Network? ☐ No ☐ Yes If yes, you must submit 3 most current monthly statements.	Previously processed before? ☐ No ☐ Yes If yes, name of processor and reason for leaving:	
Has the business or any Associated Principal been terminated as a Visa/MasterCard/Discover Network Merchant? ☐ No ☐ Yes Provide date, if "Yes"	Has Merchant or any Associated Principal disclosed above filed for bankruptcy or been subject to an involuntary bankruptcy? ☐ No ☐ Yes	
Do you have a refund policy for Visa/MasterCard/Discover Network? Is the refund policy in writing that is obvious to the cardholder/customer? ☐ Yes ☐ No Please describe refund policy.		
Do you use any third party to store, process or transmit cardholder data? ☐ No ☐ Yes Please identify any Software used for storing, transmitting, or processing Card transactions or Authorization requests.		
Seasonal? ☐ No ☐ Yes If yes, indicate months: ☐ J ☐ F ☐ M ☐ A ☐ M ☐ J ☐ J ☐ A ☐ S ☐ O ☐ N ☐ D		
Processing Volume for Visa/MasterCard/Discover Average Monthly Volume: \$ _____ Average Ticket: \$ _____ Highest Ticket Amount: \$ _____	Where are sales Transacted? Store Front/face to face _____ % Internet _____ % Mail Order _____ % Telephone Order _____ % Total Must Equal 100 %	How are Transactions Completed? Electronic Data Capture (Swiped) _____ % Manual Entry with Imprint _____ % Manual entry, no card present _____ % Voice Auth and Capture _____ % Total Must Equal 100 %
Mail/Telephone Order/ Business to Business Information (All Questions Must Be Answered by Keyed Type of Merchants) What % of total sales represent Business to Business (vs. Business to Consumer): B2B _____ % + B2C _____ % = 100% (total sales) What % of bankcard sales represent Business to Business (vs. Business to Consumer): B2B _____ % + B2C _____ % = 100% (total sales) What is the time from transaction to delivery? (% of orders delivered in days): 0-7 _____ % 8-14 _____ % 15-30 _____ % Over 30 days _____ % = 100% delivered.		
Visa/MasterCard/Discover Network sales are deposited on (check one): ☐ Date of Order ☐ Date of Delivery ☐ Other _____ Who performs product/service fulfillment? ☐ Direct ☐ Vendor ☐ Other If Vendor or third party is involved provide the following: Name/Address/Contact/Phone Number _____ Are customers required to leave a deposit? ☐ Yes ☐ No If yes, % of deposit required: _____ % Time Frame for Delivery: _____ Days		
Advertising Method(s): (check all that apply) ☐ Newspapers ☐ Magazine ☐ Yellow Pages ☐ Radio/TV ☐ Internet REQUIRED: Attach Marketing Materials for ALL MOTO, B2B and Internet Businesses (attach Web page printout)		

4. TRADE REFERENCES																																																																		
Trade Name:		Contact Name:																																																																
Bank Name:		Telephone:																																																																
5. BANKING INFORMATION *** ATTACH A VOIDED CHECK FROM ACCOUNT***																																																																		
Bank Contact:		Bank Telephone:																																																																
Transit # (ABA Routing):		Account # (DDA):																																																																
6. MERCHANT SITE SURVEY (To be completed by sales representative)																																																																		
Business Location: ☐ Store Front ☐ Office ☐ Home ☐ Other (specify)		Approx. Size: square footage: ☐ 0-500 ☐ 501-2000 ☐ 2000 +																																																																
Zone: ☐ Commercial ☐ Industrial ☐ Residential																																																																		
Does the name on the store front match the DBA name? ☐ Yes ☐ No Explain if No.		Is inventory and merchandise displayed consistent with the type of business? ☐ Yes ☐ No Explain if No.																																																																
Business Hours: _____ to _____ Time Zone: _____		Number of Employees: _____																																																																
7. EQUIPMENT DETAILS																																																																		
Terminal Provided by ☐ Meritus ☐ Merchant ☐ Agent Ship to: ☐ Merchant ☐ Agent Meritus to Build Terminal Download File ☐ Yes ☐ No Build Stage Only File ☐ Yes ☐ No Meritus to Conduct Training ☐ Yes ☐ No																																																																		
☐ RE-PROGRAM (please indicate terminal model) Terminal Model _____ Qty _____ Gateway Type _____ Qty _____ Software Model _____ Qty _____		PIN Pad _____ Qty _____ Check Reader _____ Qty _____ Printer Model _____ Qty _____ ☐ Ship Welcome Kit Only ☐ Call for ☐ Download ☐ Training Contact: _____ Telephone Number: _____																																																																
TERMINAL PROGRAMMING: Is there an existing Manual Imprinter at this location? ☐ Yes ☐ No Number of Imprinter Plates _____ Merchant acknowledges that an imprinter is required for any non-swiped transactions. ☐ Gift Cards ☐ Wireless ☐ Purchase Cards ☐ Retail (80% swiped) ☐ Retail (with tips) ☐ Restaurant (with tips) ☐ Petroleum ☐ Lodging ☐ MOTO (AVS required) ☐ Address Verification Service (AVS) ☐ 4 Digit Verification ☐ Invoice # ☐ Server ID Dial Out Code: ☐ « » Auto Batch Closing Time: ☐ Default 9:00PM ☐ Other « _____ »																																																																		
LEASE COMPANY: First Data Global Leasing Lease Term: _____ months Annual Tax Handling Fee: \$10.20 Total Monthly Lease Charge: \$ _____ w/o taxes, fees or other charges that may apply - See Lease Agreement in Program Guide for details. This is <u>non-cancelable</u> lease for the full term indicated.																																																																		
8. VISA/MASTERCARD ACCEPTANCE																																																																		
Accept all Visa, MasterCard and Discover Network Transactions (presumed, unless any section below are checked) ☐ Accept Visa Credit transactions ONLY ☐ Accept Visa Non-PIN Debit transactions ONLY ☐ Accept MasterCard Credit transactions ONLY ☐ Accept MasterCard Non-PIN Debit transactions ONLY ☐ Accept Discover Network Credit transactions ONLY ☐ Accept Discover Network Non-PIN Debit transactions ONLY																																																																		
9. JCB ACCEPTANCE																																																																		
Discount Rate: _____ By signing below, I (we) represent that all of the information contained on this application is true and complete. I (we) understand that the JCB Card Acceptance Terms and Conditions will be sent to the address above with a welcome letter upon approval by JCB. I (we) agree to be bound by the JCB Card Acceptance Terms and Conditions for accepting the JCB Card for purchases of goods or other services. AGREED AND ACCEPTED: JCB Acceptance _____ Signature ☐ Existing JCB # _____																																																																		
10. ADDED SERVICE ENROLLMENT																																																																		
☐ American Express (Please see Section 11) ☐ Merchant Cash Advance (Third-party paperwork) ☐ Check Services (For TeleCheck, please see page 3) ☐ Gift Card Services (Third-party paperwork) ☐ PIN-Debit Cards (Please see page 3) ☐ Petroleum Services (Please see page 3)																																																																		
11. SCHEDULE OF CHARGES																																																																		
☐ Interchange/Cost Plus: _____ % + \$ _____ ☐ Tiered Pricing: (Default if below is completed) <table style="width:100%; border-collapse: collapse;"> <thead> <tr> <th style="text-align: left; border-bottom: 1px solid black;">Checkcard Rate</th> <th style="text-align: left; border-bottom: 1px solid black;">Credit Rate</th> <th style="text-align: left; border-bottom: 1px solid black;">Trans Fee</th> </tr> </thead> <tbody> <tr> <td>Visa: _____ %</td> <td>_____ %</td> <td>\$ _____</td> </tr> <tr> <td>MasterCard: _____ %</td> <td>_____ %</td> <td>\$ _____</td> </tr> <tr> <td>Discover: _____ %</td> <td>_____ %</td> <td>\$ _____</td> </tr> <tr> <td colspan="3" style="padding-top: 10px;"> American Express #: _____ \$ _____ ☐ Apply for American Express </td> </tr> </tbody> </table>		Checkcard Rate	Credit Rate	Trans Fee	Visa: _____ %	_____ %	\$ _____	MasterCard: _____ %	_____ %	\$ _____	Discover: _____ %	_____ %	\$ _____	American Express #: _____ \$ _____ ☐ Apply for American Express			<table border="1" style="width:100%; border-collapse: collapse;"> <tr> <td style="padding: 2px;">AVS Voice Authorization</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">Online Reporting Fee</td> <td style="padding: 2px;">\$ _____</td> </tr> <tr> <td style="padding: 2px;">VRU & ARU Fee</td> <td style="padding: 2px;">\$ 0.75</td> <td style="padding: 2px;">Other Fee</td> <td style="padding: 2px;">\$ 1.00</td> </tr> <tr> <td style="padding: 2px;">Voice Authorization Fee</td> <td style="padding: 2px;">\$ 1.00</td> <td colspan="2" style="padding: 2px; text-align: center;">Select All that Apply</td> </tr> <tr> <td style="padding: 2px;">Chargeback Fee</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">☐ Mobile PXP Activation</td> <td style="padding: 2px;">\$49.95</td> </tr> <tr> <td style="padding: 2px;">Retrieval Fee</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">☐ Wireless Activation Fee</td> <td style="padding: 2px;">\$35.00</td> </tr> <tr> <td style="padding: 2px;">ACH/Batch Settlement</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">☐ Wireless Monthly Fee</td> <td style="padding: 2px;">\$ _____</td> </tr> <tr> <td style="padding: 2px;">AVS Fee</td> <td style="padding: 2px;">\$ 0.10</td> <td style="padding: 2px;">☐ Wireless Transaction Fee</td> <td style="padding: 2px;">\$ _____</td> </tr> <tr> <td style="padding: 2px;">Monthly Minimum</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">☐ Gateway Setup Fee</td> <td style="padding: 2px;">\$ _____</td> </tr> <tr> <td style="padding: 2px;">Service/Statement Fee</td> <td style="padding: 2px;">\$10.00</td> <td style="padding: 2px;">☐ Gateway Monthly Fee</td> <td style="padding: 2px;">\$ _____</td> </tr> <tr> <td style="padding: 2px;">Merchant Club</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">☐ Gateway Transaction Fee</td> <td style="padding: 2px;">\$ _____</td> </tr> <tr> <td style="padding: 2px;">Application Fee</td> <td style="padding: 2px;">\$ 12.50</td> <td style="padding: 2px;">☐ Equipment Encryption</td> <td style="padding: 2px;">\$25.00</td> </tr> <tr> <td style="padding: 2px;">Monthly Maintenance Fee</td> <td style="padding: 2px;">\$ _____</td> <td style="padding: 2px;">☐ Equipment Swap</td> <td style="padding: 2px;">\$50.00</td> </tr> </table>		AVS Voice Authorization	\$ _____	Online Reporting Fee	\$ _____	VRU & ARU Fee	\$ 0.75	Other Fee	\$ 1.00	Voice Authorization Fee	\$ 1.00	Select All that Apply		Chargeback Fee	\$ _____	☐ Mobile PXP Activation	\$49.95	Retrieval Fee	\$ _____	☐ Wireless Activation Fee	\$35.00	ACH/Batch Settlement	\$ _____	☐ Wireless Monthly Fee	\$ _____	AVS Fee	\$ 0.10	☐ Wireless Transaction Fee	\$ _____	Monthly Minimum	\$ _____	☐ Gateway Setup Fee	\$ _____	Service/Statement Fee	\$10.00	☐ Gateway Monthly Fee	\$ _____	Merchant Club	\$ _____	☐ Gateway Transaction Fee	\$ _____	Application Fee	\$ 12.50	☐ Equipment Encryption	\$25.00	Monthly Maintenance Fee	\$ _____	☐ Equipment Swap	\$50.00
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Qualified Rate is assessed when your transactions meet certain criteria set by the applicable Association and Processor. When your Card transactions fail to meet those qualification criteria, we will process your transactions at the higher Mid-qualified Discount Rate (Rate 2) of _____ + \$0.10 or in certain circumstances, at a Non-qualified Discount Rate (Rate 3 / Standard*) of _____ + \$0.10 both rates are a surcharge to the qualified rate. An interchange transaction fee of \$0.1073 is assessed on each bankcard transaction. Rates may appear on your statement as Electronic or Standard.																																																																		

☐ ERR Rate: Discount Rate Non-Qualified Fee Authorization Fee Visa Qualified: % % \$ _____ MasterCard Qualified: % % \$ _____ Discover Network: % % \$ _____	TeleCheck: ☐ Existing TeleCheck #: _____ Discount Rate: _____ % Per Trx \$ _____ Monthly Minimum (Per Location) \$25.00 ACH Processing Fee \$5.00 Annual Volume\$ _____ Average Ticket \$ _____ ECA Chargeback Fee \$5.00 Client Requested Operator Call \$2.50 December Risk surcharge 10% ☐ ECA ☐ Paper Warranty ☐ Verification ☐ License Number or MICR _____
PIN-Debit Card: Monthly Network Access Fee: \$ _____ Authorization/Transaction Fee: \$ _____ + Network Fees (default) OR + _____ Network Fees ☐ Cash Back \$ _____ < Max	Petroleum: Pay at the Pump: ☐ Yes ☐ No Wright Express (WEX)#: _____ ☐ WEX Rate: 3.50% Authorization Fee: \$ _____ Voyager #: _____ ☐ Voyager Rate: 3.40% Authorization Fee: \$ _____
EBT: FCS #: _____ Transaction Fee: \$ _____ Benefit Issuance Availability: Days _____ Hours _____ Check all EBT services provided at this location: ☐ Food Stamps ☐ Cash Benefits ☐ Purchase with Cash Back ☐ Purchase ☐ Cash Withdrawal ☐ If Cash Issuance, the limit amount: \$ _____	Other Bank Fees: Account Maintenance: \$20; Returned Item Fee: \$25 charged if amounts due are not available when a debit is attempted; Decline Fee (an amount equal to the Authorization Fee amount and charged per item). The following Visa/MC & Discover fees are assessed by the appropriate association and passed on to the Merchant: NABU, VAP, Acquirer Support, Cross Border, Zero Floor Limit, Assessments, IAF, & ISA; Annual Fee: \$99; Monthly Compliance Fee: \$3.87 (does not affect your compliance responsibilities and obligations associated with your merchant account).

12. SIGNATURES

Client certifies that all information set forth in this completed Merchant Processing Application is true and correct and that Client has received a copy of the MC and Visa Tiered Grid ID Numbers, Guide and Confirmation Page, which is part of this Merchant Processing Application (consisting of Sections 1-10), and by this reference incorporated herein. (Program Guide can be downloaded from <http://www.merituspays.com/forms/MPS1212.pdf>). Client further agrees that Client will not accept more than 20% of its card transactions via mail, telephone or Internet order. However, if your Application is approved based upon contrary information stated in Section 3, Merchant Profile section above, you are authorized to accept transactions in accordance with the percentages indicated in that section. This signature page serves as a signature page to the Equipment Lease Agreement as Section 34, if selected, the undersigned Client being the "Leasee" for purposes of such Equipment Lease Agreement. Note: See Section 36.3 of Program Guide for early termination fees. Client authorizes Meritus Payment Solutions ("Meritus") and Wells Fargo Bank, N.A. ("Bank") and their agents to investigate the references, statements and other data contained herein and to obtain additional information from credit bureaus and other lawful sources, including persons and companies names in this Merchant Processing Application. Client authorizes Meritus and BANK and their agents (a) to procure information from any consumer reporting agency bearing his/her personal credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living, and (b) to contact all previous employers, personal references and educational institutions. It is our policy to obtain certain information in order to verify your identity while processing your account application.

By signing below, I represent that I have read and am authorized to sign and submit this application for the above entity which agrees to be bound by the American Express® Card Acceptance Agreement ("Agreement"), and that all information provided herein is true, complete and accurate. I authorize Meritus Payment Solutions and American Express Travel Related Services Company, Inc. ("AXP") and AXP's agents and Affiliates to verify the information in this application and receive and exchange information about me personally, including by requesting reports from consumer reporting agencies, and disclose such information to their agent, subcontractors, Affiliates and other parties for any purpose permitted by law. I authorize and direct Meritus Payment Solutions and AXP and AXP agents and Affiliates to inform me directly, or through the entity above, of reports about me that they have requested from consumer reporting agencies. Such information will include the name and address of the agency furnishing the report. I also authorize AXP to use the reports from consumer reporting agencies for marketing and administrative purposes. I understand that upon AXP's approval of the Application, the entity will be the Agreement and materials welcoming it, either to AXP's program for Meritus Payment Solutions to perform services for AXP or in AXP's standard Card acceptance program, which has different servicing terms (e.g., different speeds of pay). I understand that if the entity does not qualify for the Meritus Payment Solutions servicing program, the entity may be enrolled in AXP's standard Card acceptance program, and the entity may terminate the Agreement. By accepting the American Express Card for the purchase of goods and/or services, or otherwise indicating its intention to be bound, the entity agrees to be bound by the Agreement. You further acknowledge and agree that you will not use your merchant account and/or the Services for illegal transactions, for example, those prohibited by the Unlawful Internet Gambling Enforcement Act, 31 U.S.C. Section 5361 et seq, as may be amended from time to time."

Client agrees to all the terms of this Merchant Processing Application and Agreement. This Merchant Processing Application and Agreement shall not take effect until Client has been approved and this Agreement has been accepted by Meritus and Bank.

Client's Business Principal(s) / Officer(s):

Signature _____ Title _____

Print Name Of Signer _____ Date _____

Signature _____ Title _____

Print Name Of Signer _____ Date _____

PERSONAL GUARANTEE: The undersigned unconditionally guarantees to Meritus and Bank the performance of this Agreement and First Data Lease, if applicable, and any addendum thereto by Client, and in the event of default, hereby waives Notice of Default and agrees to indemnify the other parties, including payment of all sums due and owing and costs associated with enforcement of the terms thereof. Meritus and Bank shall not be required to first proceed against Client or enforce any other remedy before proceeding against the undersigned individual. This is a continuing guarantee and shall not be discharged or affected by the death of the undersigned and shall bind the heirs, administrators, representatives and assigns and be enforced by or for the benefit of any successor of Meritus and Bank. The term of this guarantee shall be for the duration of the Merchant Processing Application and Agreement and any addendum thereto and shall guarantee all obligations which may arise or occur in connection with my activities during the term thereof through enforcement shall be sought subsequent to any termination.

Personal Guarantee

Signature _____ Print Name Of Guarantor _____ Date _____

Personal Guarantee

Signature _____ Print Name Of Guarantor _____ Date _____

Accepted By Meritus Payment Solutions

Wells Fargo Bank, NA., 1200 Montego Way, Walnut Creek, CA 94598

Signature X _____

Signature X _____

Title _____ Date _____

Title _____ Date _____

Please read the Merchant Processing Program Guide in its entirety. It describes the terms under which we will provide merchant processing services to you.

From time to time you may have questions regarding the contents of your Agreement with Bank and/or Processor or the contents of your agreement with TeleCheck. The following information summarizes portions of your Agreement in order to assist you in answering some of the questions we are most commonly asked.

1. **Your discount rates are assessed** on transactions that qualify for certain reduced interchange rates imposed by MasterCard, Visa and Discover Network. Any transactions that fail to qualify for these reduced rates will be charged an additional fee (see Section 18 of the Card Processing Program Guide).
2. **We may debit your bank account** from time to time for amounts owed to us under the Agreement.
3. **There are many reasons** why a Chargeback may occur. When they occur we will debit your settlement funds or settlement account. For a more detailed discussion regarding Chargebacks, see Section 10.
4. **If you dispute any charge or funding**, you must notify us within 45 days of the date of the statement where the charge or funding appears or should have appeared.
5. **The Agreement limits our liability to you.** For a detailed description of the limitation of liability see Section 20.
6. **We have assumed certain risks** by agreeing to provide you with Card processing. Accordingly, we may take certain actions to mitigate our risk, including termination of the Agreement, and/or hold monies otherwise payable to you (see Section 23, Term; Events of Default and Section 24, Reserve Account; Security Interest).
7. **By executing this Agreement with us** you are authorizing us to obtain financial and credit information regarding your business and the signer and guarantors of the Agreement until all your obligations to us are satisfied.
8. **The Agreement contains a provision** that in the event you terminate the Agreement early, you may be responsible for the payment of early termination fees as set forth in Section 36, Additional Fee Information.
9. **If you lease equipment from Processor**, it is important that you review Section 34 in Third Party Agreements. **This lease is a non-cancelable lease for the full term indicated.**

10. Association Disclosure

Visa and MasterCard Member Bank Information: Wells Fargo Bank, N.A.

The Bank's mailing address is 1200 Montego Way, Walnut Creek, CA 94598, and its phone number is (925) 746-4143.

Important Member Bank Responsibilities:

- a) The Bank is the only entity approved to extend acceptance of Visa and MasterCard products directly to a Merchant.
- b) The Bank must be a principal (signer) to the Merchant Agreement.
- c) The Bank is responsible for educating Merchants on pertinent Visa and MasterCard rules with which Merchants must comply; but this information may be provided to you by Processor.
- d) The Bank is responsible for and must provide settlement funds to the Merchant.
- e) The Bank is responsible for all funds held in reserve that are derived from settlement.

Important Merchant Responsibilities:

- a) Ensure compliance with cardholder data security and storage requirements.
- b) Maintain fraud and chargebacks below Association thresholds.
- c) Review and understand the terms of the Merchant Agreement.
- d) Comply with Association rules.

Print Client's Business Legal Name: _____

By its signature below, Client acknowledges that it received (either in person, by facsimile, or by electronic transmission) the complete Program Guide (Version MPS1212) consisting of 30 pages (including this confirmation).

Client further acknowledges reading and agreeing to all terms in the Program Guide, which shall be incorporated into Client's Agreement. Upon receipt of a signed facsimile or original of this Confirmation Page by us, Client's Application will be processed.

Client understands that a copy of the Program Guide is also available for downloading from the Internet at:

www.merituspayment.com/forms/MPS1212

NO ALTERATIONS OR STRIKE-OUTS TO THE PROGRAM GUIDE WILL BE ACCEPTED AND, IF MADE, ANY SUCH ALTERATIONS OR STRIKE-OUTS SHALL NOT APPLY.

Client's Business Principal:

Signature (Please sign below):

X _____

Title

Date

Please Print Name of Signer